

Rajaram Singh @ Ram Swaroop v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 11 September 2018 · Writ - C No. 36695 of 2012 · **Writ dismissed for want of prosecution; interim order vacated.**

HEADNOTE

Writ challenging a recovery citation said to have issued without provisional or final assessment under the U.P. Electricity Supply Code was dismissed for want of prosecution after none appeared for the petitioner; the earlier stay of coercive steps stood vacated.

FACTUAL SUMMARY

Rajaram Singh challenged a 25 May 2012 recovery citation issued on a recovery certificate, alleging there was no provisional or final assessment under the U.P. Electricity Supply Code. On 21 August 2012 the Court recorded that respondents produced only an undated assessment letter that did not show when it was prepared or whether a provisional assessment had issued, and stayed coercive steps. After adjournments for a counter affidavit, none appeared when the petition was called on 11 September 2018.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for want of prosecution

HOLDING

On revision of the list none appeared for the petitioner. The writ petition was dismissed for want of prosecution and the interim order, if any, was vacated. The Court did not decide whether the 25 May 2012 citation was supported by a provisional or final assessment under the Supply Code. ¶ 11.9.2018

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 25 MAY 2012 RECOVERY CITATION WAS ISSUED WITHOUT A PROVISIONAL OR FINAL ASSESSMENT UNDER THE U.P. ELECTRICITY SUPPLY CODE

Coercive steps were stayed on 21.8.2012 after respondents produced only an undated assessment letter; that issue was not decided on merits before dismissal for non-prosecution. ¶ 21.8.2012